

Jitendra Kumar Agnihotri v. State of U.P. — writ against final assessment relegated to s.127 appeal

High Court of Judicature at Allahabad · Division Bench · 10 March 2014 · WRIT - C No. - 13755 of 2014 · **Writ disposed; s.127 / cl. 6.8(d) appeal to be filed in 15 days.**

HEADNOTE

A writ questioning a final assessment bill was not decided on merits. Noting that an appeal lay under s.127 of the Electricity Act, 2003 read with clause 6.8(d) of the Electricity Supply Code, 2005 within 30 days, the Court disposed of the petition by permitting the consumer to file that appeal within 15 days and directing the appellate authority to decide it within six weeks.

FACTUAL SUMMARY

Jitendra Kumar Agnihotri challenged a final assessment bill dated 17 June 2013. A Division Bench on 6 March 2014 declined jurisdiction because no recovery proceeding was under challenge and listed the writ as a fresh case. On 10 March 2014, before Amreshwar Pratap Sahi and Vivek Kumar Birla JJ., the electricity department objected that an appeal lay under section 127 of the Electricity Act, 2003 read with clause 6.8(d) of the Electricity Supply Code, 2005.

HOLDING-UNITS

INTERPLAY · UP-2005::6.8(d)

statutory appeal against final assessment bill

HOLDING

A writ against a final assessment bill is disposed of by relegating the consumer to the statutory appeal under s.127 of the Electricity Act, 2003 read with clause 6.8(d) of the Supply Code, 2005. The Court recorded that the limitation for such appeal is 30 days, permitted filing within 15 days of the order, and directed the appellate authority to dispose of the appeal within six weeks. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment A writ questioning a final assessment bill was not decided on merits. Noting that an appeal lay under s.127 of the Electricity Act, 2003 read with clause 6.8(d) of the Electricity Supply Code, 2005 within 30 days ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal A writ questioning a final assessment bill was not decided on merits. Noting that an appeal lay under s.127 of the Electricity Act, 2003 read with clause 6.8(d) of the Electricity Supply Code, 2005 within 30 days ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE FINAL ASSESSMENT BILL DATED 17.6.2013

¶ 1